

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KEVIN TORRES,

Plaintiff,

vs.

THE CITY OF NEW YORK, DET. ERIC MILLER, Shield No. 3190, and
POLICE OFFICER JOHN DOES 1-2, (Said Officers' True Names being
Unknown, it thereby is intended to designate said Police Officers)

Defendant(s)

SUMMONS

Plaintiffs designate Bronx County as
the place of trial.

The basis of venue is:
The Place of Occurrence.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 23, 2015

STEVEN ADAM RUBIN & ASSOCIATES, PLLC
STEVEN ADAM RUBIN
Attorneys for Plaintiff
71 West 23rd Street, Suite 1623
New York, New York 10010
212-643-5402

TO: ZACHARY W. CARTER
CORPORATION COUNSEL
Attorneys for CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

DETECTIVE ERIC MILLER, SHIELD NO. 3190
44TH PRECINCT
2 EAST 169 STREET
BRONX, NY 10452

1 SUPREME COURT OF THE STATE OF NEW YORK
2 COUNTY OF BRONX

3 KEVIN TORRES,

4 Plaintiff,

5 vs.

6 THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT and
POLICE OFFICER ORTIZ

7 Defendant(s)

Index No.:
Date Purchased:

VERIFIED COMPLAINT

8 Plaintiff by his attorney Steven Adam Rubin & Associates, PLLC for his complaint herein, upon information and belief,
9 respectfully alleges:

- 10 1. At all times hereinafter mentioned, plaintiff was and is natural person residing in the State of New
11 York.
- 12 2. Upon information and belief, defendant THE CITY OF NEW YORK was and still is a municipal
13 corporation, duly organized and existing under and by virtue of the laws of the State of New York.
- 14 3. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK,
15 by its agents, servants and/or employees operated and maintained a police force known as the NEW
16 YORK CITY POLICE DEPARTMENT, the headquarters of which are located at One Police Plaza,
17 New York, New York.
- 18 4. That plaintiff has complied with all the conditions precedent to the bringing of this action, and within
19 ninety (90) days after the date of the occurrence herein, on April 29, 2014, plaintiff duly served a
20 written notice of claim upon the Comptroller of the CITY OF NEW YORK, pursuant to law, said notice
21 being verified by oath of plaintiff and/ or plaintiff's attorney in fact, specifying his intention to sue by
22 commencing an action against the defendant, CITY OF NEW YORK for false arrest, false
23 imprisonment, malicious prosecution, assault and battery, violation of civil rights pursuant to the State
24 and Federal Constitutions for personal injuries and negligently hiring, training, supervising and training
25

1 of Defendant Detective/New York City Police Officer and other police officers, employees, servants
2 and agents of defendant City of New York.

- 3 5. That a hearing, pursuant to General Municipal Law Section 50-H was held on January 13, 2015 with
4 plaintiff Kevin Torres, and with Plaintiff's mother, as Plaintiff was less than eighteen (18) years of age
5 at the time.
- 6 6. That this action is brought within one year after the said occurrence and that more than thirty days
7 have elapsed since service of such notice of claim and since the conclusion of said 50-H hearing, and
8 said claim remains unadjusted and defendants refuse to make any adjustment of same.
- 9 7. At all times hereinafter stated, defendants failed to remedy same as required by Section 394a-1.0 of
10 the Administrative Code of the City of New York (subsequently renumbered Section 7-201).
- 11 8. That at all times hereinafter mentioned, defendant DETECTIVE ERIC MILLER, SHIELD NO. 3190
12 And JOHN DOE 1-2, (Said Officers' True Names being Unknown, it thereby is intended to designate
13 said Police Officers) were members of the Police Department of the City of New York, and were acting
14 during the course of their employment with, for the business uses and purposes of, and within the
15 scope of their employment with the Police Department of the City of New York and of the defendant,
16 CITY OF NEW YORK.

17 **FIRST CAUSE OF ACTION**

- 18 9. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
19 with the same force and effect as if more fully set forth herein.
- 20 10. That on March 28, 2014, Defendants the CITY OF NEW YORK and its employees, agents and/or
21 servants, specifically NEW YORK CITY POLICE OFFICER DEFENDANT DET. ERIC MILLER, Shield
22 No. 3190 and JOHN DOES 1-2, (Said Officer's True Names Being Unknown, it thereby is intended to
23 designate said Police Officers) unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly,
24 recklessly, and without probable cause, reason or justification, arrested and detained plaintiff KEVIN
25 TORRES.

1 11. That the aforesaid arrest and confinement of plaintiff was caused solely and wholly through and by
2 reason of the culpable acts and conduct of the defendants, their agents, servants and/or employees
3 acting under their employment and within the scope of their authority without any warrant or other
4 legal process and without authority of the law and without any reasonable cause or belief that the
5 plaintiff had committed any crime and with no culpable conduct on the part of the plaintiff contributing
6 thereto.

7 12. That by reason of the aforesaid, the plaintiff was confined for a period of exceeding 24 hours.

8 13. That the plaintiff was conscious of his confinement.

9 14. That the plaintiff did not consent to his confinement.

10 15. The confinement of the plaintiff by members of the CITY OF NEW YORK/ THE NEW YORK CITY
11 POLICE DEPARTMENT and its employee, agents and/or servants was not privileged.

12 16. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was denied his
13 liberty, and caused to sustain serious, severe and painful mental injuries together with humiliation,
14 ridicule, degradation of his good character and damage to his good name, and he became
15 incapacitated and was unable to attend to his usual duties.

16 17. This action falls within one or more of the exemptions set forth in CPLR §1602.

17 18. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

18 **SECOND CAUSE OF ACTION**

19 19. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
20 with the same force and effect as if more fully set forth herein.

21 20. That on March 28, 2014, defendant CITY OF NEW YORK, its agents, servants and/or employees,
22 specifically Defendant NEW YORK CITY POLICE OFFICER, DET. ERIC MILLER, Shield No. 3190
23 and JOHN DOES 1-2, (Said Officers' True Name Being Unknown, it thereby is intended to designate
24 said Police Officer) unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly,
25 and without probable cause, reason or justification battered and assaulted plaintiff herein.

1 21. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries.

2 22. This action falls within one or more of the exemptions set forth in CPLR §1602.

3 23. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

4 **THIRD CAUSE OF ACTION**

5 24. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
6 with the same force and effect as if more fully set forth herein.

7 25. That on March 28, 2014, Defendants CITY OF NEW YORK, its agents, servants and/or employees,
8 specifically Defendant NEW YORK CITY POLICE OFFICER DET. ERIC MILLER, Shield No. 3190
9 and JOHN DOES 1-2, (Said Officers' True Names Being Unknown, it thereby is intended to designate
10 said Police Officer) unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly,
11 and without probable cause, reason or justification battered and used excessive force to effectuate the
12 detention and arrest of plaintiff herein.

13 26. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
14 damages.

15 27. This action falls within one or more of the exemptions set forth in CPLR §1602.

16 28. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

17 **FOURTH CAUSE OF ACTION**

18 29. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
19 with the same force and effect as if more fully set forth at length herein.

20 30. Defendant CITY OF NEW YORK, its agents, servants and/or employees, specifically members of the
21 NEW YORK CITY POLICE DEPARTMENT acting within the scope of their employment did negligently
22 hire, retain, train and supervise Individuals who were unfit for the performance of police duties on
23 March 28, 2014, including, but not limited to Defendant Police Officer DET. ERIC MILLER, Shield No.
24 3190 and JOHN DOES 1-2, (Said Officers' True Names Being Unknown, it thereby is intended to
25 designate said Police Officers).

1 31. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
2 damages.

3 32. This action falls within one or more of the exemptions set forth in CPLR §1602.

4 33. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

5 **FIFTH CAUSE OF ACTION**

6 34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above
7 paragraphs with the same force and effect as if more fully set forth at length herein.

8 35. That on March 28, 2014, plaintiff KEVIN TORRES was on the sidewalk at or near the intersection of
9 166th Street and Summit Avenue, in the county of Bronx, City and State of New York, when two (2)
10 police officers exited an unmarked police vehicle and approached Plaintiff. Plaintiff, KEVIN TORRES
11 was thereafter, without lawful reason or authority, battered and assaulted about his face and body
12 causing serious physical injury, and subsequently handcuffed behind his back, arrested and taken to
13 the 44th Police Precinct for processing.

14 36. That on March 28, 2014, defendant DET. ERIC MILLER, Shield No. 3190 falsely executed a written
15 complaint wherein Plaintiff was charged with violating Penal Law Sections 265.03(3), Criminal
16 Possession of a Weapon, section 265.01—b(1), Criminal Possession of a Firearm, section 205.10(2),
17 Escape, section 265.01(1), Criminal Possession of a Weapon and section 205.05, Escape. Plaintiff
18 was also charged with violating Administrative Code section 10—131(i)(3) Possession of Ammunition.

19 37. That on March 28, 2014, plaintiff was falsely arrested, by the aforementioned Defendant NEW YORK
20 CITY POLICE OFFICER DET. ERIC MILLER, Shield No. 3190, JOHN DOES 1-2 (Said Officers' True
21 Names Being Unknown, it thereby is intended to designate said Police Officers). DEFENDANTS'
22 agents, servants, and/or employees of the defendant, CITY OF NEW YORK, for the aforementioned
23 violations of the Penal Law of the State of New York.

24 38. That following the aforementioned arrest of the plaintiff on March 28, 2014, plaintiff was
25 unlawfully detained and imprisoned for a period exceeding 24 hours.

1
2 39. That said defendant POLICE OFFICER DET. ERIC MILLER, Shield No. 3190, and POLICE
3 OFFICER JOHN DOES 1-2, (Said Officers' True Name Being Unknown, it thereby is intended
4 to designate said Police Officers) having the real apparent ability to cause imminent harmful and
5 offensive bodily contact and the power and authority to arrest and detain the plaintiff did so and
6 forcibly detained plaintiff and falsely arrested him.

7 40. That the acts of forcibly detaining plaintiff and of using excessive force to arrest him and falsely
8 arresting him deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United
9 States and of the State of New York, without any conduct on the part of plaintiff to so warrant to wit:

- 10 a. In that all of the actions of the defendants, their agents, servants and employees, were
11 committed with the intention to cause bodily and mental injury to the plaintiff, to arrest,
12 restrain and imprison the plaintiff without his consent, the plaintiff was at all times
13 conscious of his arrest, did not consent to the false arrest and imprisonment, and said
14 actions were not otherwise privileged; and
- 15 b. The arrest and imprisonment were not justified by probable cause or other legal privilege;
16 defendants, their agents, servants and employees, acting under color of statute,
17 ordinances, regulations, customs and usages of the State and City of New York, County
18 of New York, and under the authority of their office as police officers for said County.
- 19 c. That the defendant(s), their agents, servants and employees failed to adequately and
20 properly hire, retain, train, supervise, discipline or in any other way control the behavior
21 and performance of the defendants, their agents, servants and employees; that in their
22 hiring practices in the exercise of their police functions and their failure to enforce the laws
23 of the State and City of New York is evidence of the reckless lack of cautious regard for
24 the rights of the public including plaintiff; in that they exhibited a lack of that degree of due
25

1 care which prudent and reasonable individuals would show in executing the duties of the
2 defendants; and

3 d. The failure of the defendants, its agents, servants and employees to hire, train, supervise,
4 discipline or in any other way control the defendants, in the exercise of their functions; in
5 that their failure to enforce the laws of the state of New York and The City of New York
6 was and is carried out willfully, wantonly, maliciously and with such reckless disregard for
7 the consequences so as to display a conscious disregard for the dangers of harm and
8 injury to the citizens of the State and City of New York including plaintiff; and

9 e. Due to the acts of the defendants, its agents, servants and employees herein to discipline
10 and properly hire the defendants and the continued employment of the defendants,
11 agents, servants and employees presents a clear and present danger to the citizens of
12 the City and State of New York, County of Bronx; and

13 f. That the said arrest of plaintiff was procured by the defendants, their agents, servants and
14 employees in this action unlawfully. That the commencement and/or continuation of
15 plaintiff's detention by the defendants was without probable cause and with actual malice;
16 and

17 g. That the defendants, its agents, servants and employees permitted the use of policy
18 and/or drafted policy that was violative of the Constitutional rights of plaintiff; and in that
19 each all of the acts of the defendants, their agents, servants and employees alleged
20 herein, were done not as individuals but under the color and pretense of the statutes,
21 ordinances, regulations, customs and usages of the State of New York, City of New York
22 and County of Bronx, and under the authority of their office as police officers.

23 41. Defendant(s) did not have probable cause to arrest plaintiff, and said act deprived plaintiff of his
24 Constitutional rights as set forth in the Constitution of the United States and the Constitution of the
25 State of New York.

1 42. As a direct result of the illegal actions and conduct on the part of the defendants, their agents,
2 servants and employees, plaintiff was falsely arrested and imprisoned.

3 43. That at all time hereinafter mentioned, defendants, their agents, servants and/or employees,
4 specifically members of the New York City Police Departments were acting under the color of their
5 official capacity and their acts were performed under the color of the policies, statutes, ordinances,
6 rules and regulations of the City of New York and State of New York.

7 44. Said agents, servants and/or employees, specifically members of the New York City Police
8 Department acting under the color of law, have subjected plaintiff and other persons to a pattern of
9 conduct consisting of false imprisonment and arrest at the time said person was lawfully and properly
10 on public property in the City and State of New York, County of Bronx and elsewhere, in denial of
11 rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the
12 United States and the State of New York.

13 45. This systemic pattern of conduct consists of a large number of false arrest and false imprisonment and
14 negligence visited upon plaintiff and other citizens by defendants and under color of law, and while
15 carried out under color of law, have no justification or excuse in law and are instead illegal, improper
16 and unrelated to any activity in which police officers may appropriately and legally engage in the
17 course of protecting persons or property or ensuring civil order.

18 46. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
19 including but not limited to policies and customs concerning the investigative procedures conducted
20 before the effectuation of an arrest and the hiring, training, supervision, retention and discipline of the
21 CITY OF NEW YORK, its agents, servants and/or employees who are responsible of conducting said
22 investigative tasks.

23 47. That defendant the CITY OF NEW YORK encouraged approved and/or tolerated the use of
24 misconduct involving false arrests and false imprisonments against civilians.

25 48. This systemic pattern of conduct consists of the use of excessive force while effectuating an arrest
visited upon plaintiff and other citizens by defendants and under color of law, and while carried out

1 under color of law, have no justification or excuse in law and are instead illegal, improper and
2 unrelated to any activity in which police officers may appropriately and legally engage in the course of
3 protecting persons or property or ensuring civil order.

4 49. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
5 including but not limited to policies and customs concerning the use of excessive force while
6 effectuating and arrest and the hiring, training, supervision, retention and discipline of the CITY OF
7 NEW YORK, its agents, servants and/or employees who take part in effectuating arrests.

8 50. That defendant the CITY OF NEW YORK encouraged, approved and/or tolerated the use of excessive
9 force while effectuating an arrest.

10 51. That defendant the CITY OF NEW YORK encourage, approve and/or tolerate attempts by the police
11 officers and the New York City Police Department to conceal misconduct by way of the use of
12 excessive force in effectuating an arrest by failing to provide adequate training, supervision and
13 discipline to the officers.

14 52. Although defendants, their agents, servants and/or employees knew or should have known the fact
15 that the aforementioned patterns of conduct are carried out by their agents, servants or employees,
16 said defendants, specifically defendant the CITY OF NEW YORK, have not taken any steps or made
17 any efforts to halt this course of conduct, to make redress to the plaintiff or other citizen injured
18 thereby, or to take any disciplinary action whatever. against any of their agents, servants or
19 employees.

20 53. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of
21 them, deprived plaintiff of the following rights, privileges and immunities secured to him by the
22 Constitutions of the United States and the State of New York:

- 23 a. The right of plaintiff to be secure in his home
- 24 b. The right of plaintiff to be secure of his person
- 25 c. The right of plaintiff not to be deprived of life, liberty or property without due process of
law.

d. The right of equal protection under the laws of United States of America.

54. That by reason of the aforesaid violations, false arrest, false imprisonment, assault and battery by the defendants, their agents, servants and employees who conspired together to wrongly deprive plaintiff of his rights and privileges as provided to him in the Constitution of the United States and the New York State Constitution, plaintiff was deprived of his liberty, and was subjected to and caused to suffer great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, and the said plaintiff has been otherwise damaged.

55. This action falls within one or more of the exemptions set forth in CPLR §1602.

56. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
March 25, 2015

Yours etc.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC

BY: STEVEN ADAM RUBIN, ESQ.
71 West 23rd Street, Suite 1623
New York, NY 10010
212-643-5402

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK

SS:

COUNTY OF NEW YORK

KEVIN TORRES, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, New York
March 24, 2015

Kevin Torres
KEVIN TORRES

Sworn to before me this
24 day of March, 2015

~~Notary Public~~

STEVEN A. RUBIN
Notary Public, State of New York
No. C2RU5019531
Qualified in New York County
Commission Expires October 25, 2019

1/8/18

Index No: Year:
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THE CITY OF NEW YORK, DET. ERIC MILLER, Shield No. 3190, and POLICE OFFICER JOHN
DOES 1-2 (SAID OFFICERS' TRUE NAMES BEING UNKNOWN, IT THEREBY IS INTENDED TO
DESIGNATE SAID POLICE OFFICERS)

Defendants

LAW OFFICE OF
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
KEVIN TORRES
71 West 23rd Street, Suite 1623
New York, NY 10010
(212) 643-5402

ATTORNEY'S CERTIFICATION

STATE OF NEW YORK COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, does hereby certify, pursuant to 22NYCRR 130-1.1 certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: March 25, 2014

NOTICE OF ENTRY OR SETTLEMENT

PLEASE TAKE NOTICE that an order

NOTICE OF ENTRY

of which the within is a (true) (certified) copy of a
within named court on 2015.

duly entered in the office of the clerk of the

NOTICE OF SETTLEMENT

will be presented for settlement to the Hon.
Court, at on 2015

One of the judges of the within named

at o'clock M.

Dated: March 25, 2014

Yours etc.,

STEVEN ADAM RUBIN, ESQ.